

24STCV18140 24STCV18140

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Case Number: 24STCV18140 Hearing Date: August 28, 2026 Dept: 510

No.

8 - Madilena Acuna v. Biolife Plasma Services LP, et al.

Defendant Biolife Plasma Services LP's

Motion to Compel Further Responses to Requests for Production in First Amended

Notice of Deposition to Plaintiff

Defendant

Biolife Plasma Services LP moves to compel Plaintiff Madilena Acuna to serve further responses to requests for production nos. 5 and 6 contained in its first amended notice of deposition to Plaintiff.

Code of Civil Procedure section 2025.450,

subdivision (a) provides, "If, after service of a deposition notice, a party .

. . without having served a valid objection under Section 2025.410, fails ... to

produce for inspection any document, electronically stored information, or

tangible thing described in the deposition notice, the party giving the notice

may move for an order compelling ... the production for inspection of any

document, electronically stored information, or tangible thing described in the

deposition notice."

The

following requests are in dispute:

No.

5: Each and every electronic device, including, but not limited to, cell

phones, smartphones, tablets, and iPads (including power cords), YOU used to

TRANSMIT COMMUNICATIONS with Defendant Liliana Ledezma between March 8, 2022

and August 15, 2023.

No.

6: Each

and every electronic device, including, but not limited to, cell phones, smartphones, tablets, and iPads (including power cords), YOU used to send AND/OR receive COMMUNICATIONS with any current or former employee of DEFENDANT between March 8, 2022 and August 15, 2023.[1]

Plaintiff substantiates her privacy

objections. “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (Williams v. Superior Court (2017)

3 Cal.5th 531, 552.) If the

objecting party shows all three elements, then the court must balance the need for disclosure against the right to privacy. (Ibid.)

First, Plaintiff

establishes a protected privacy interest. People have a right to privacy in the contents of their cellphones. (Riley v. California (2014) 573 U.S. 373, 395 [reasoning cellphones contain “a cache of sensitive personal information”].)

Second, Plaintiff

shows an objectively reasonable expectation of privacy in the circumstances. While Plaintiff did sue her former employer for multiple causes of action including harassment and discrimination, Plaintiff would not reasonably expect that, as a result, the contents of every electronic device used to communicate with former co-workers in a year and a half time span would be subject to forensic inspection. And while Defendant contends that such inspection would not be invasive because a neutral third-party vendor would complete the examination, this narrowing is not reflected in the deposition notice itself or any stipulation between the parties. Thus, as written, the request for inspection is in direct tension with Plaintiff’s objectively reasonable expectation of privacy in the contents of her electronic devices.

Third, Plaintiff shows that the threatened

intrusion is serious. Even with Defendant’s proposed use of a third-party vendor, Plaintiff would still be forced to turn over the contents of all

electronic devices containing broad communications within a year and a half period for the vendor's potentially limitless review. This is a serious intrusion of Plaintiff's privacy rights.

Plaintiff's privacy

rights outweigh Defendant's need for disclosure here. Here, Defendant seeks this inspection because Plaintiff has admitted to deleting text messages during her employment and therefore, Defendant "cannot be certain [Plaintiff's] production is exhaustive." (Motion, at p. 5.) Defendant states it desires these documents to "verify that all relevant, nonprivileged information has been produced." (Reply, at p.1.) Meanwhile, Plaintiff's counsel attests that Plaintiff already produced copies of the desired deleted messages, including communications she received from Defendant Ledezma. (Gardner Decl. ¶¶ 11-12.)

Defendant does not

provide evidence showing that responsive documents exist that Plaintiff has not already produced; Defendant's speculation that there are more responsive communications based on its disbelief of Plaintiff does not justify the phone inspection. In other words, Plaintiff's privacy interest in the content of her electronic devices for a 1.5-year period outweighs Defendant's desire to confirm that it has received all responsive communications.

Disposition

Defendant Biolife Plasma Services LP's motion to compel

further discovery responses to requests for production in first amended notice of deposition is denied.

[1] The Court notes

that these requests are identical to request nos. 61 and 62 contained in Defendant's requests for production set three, for which Defendant moved to compel further responses. The Court denied the motion as untimely. However, the untimeliness of the motion to compel further responses under CCP § 2031.310 does not preclude Defendant from bringing this motion to compel further responses under CCP § 2025.450 as a separately authorized discovery procedure. (See *Carter v. Superior Court* (1990) 218 Cal.App.3d 994, 997.)